

SERVICE AND ASSET MANAGEMENT AGREEMENT

This **SERVICE AND ASSET MANAGEMENT AGREEMENT** (hereinafter referred to as the "Agreement") is made and entered into this **30th day of January, 2026** (the "Effective Date"), by and between:

APEX SOLUTIONS INTERNATIONAL, LLC, a limited liability company organized and existing under the laws of the State of Delaware, with its principal place of business located at 1234 Enterprise Way, Suite 500, Wilmington, DE 19801, United States of America (hereinafter referred to as the "**Service Provider**");

AND

NOVA METRICS HOLDINGS, CORP., a corporation organized and existing under the laws of the Province of Ontario, with its registered corporate headquarters situated at 5678 Innovation Boulevard, Floor 12, Toronto, ON M5V 2L7, Canada (hereinafter referred to as the "**Client**").

The Service Provider and the Client may be referred to individually as a "**Party**" and collectively as the "**Parties**."

Part 2: The Recitals (Witnesseth)

WHEREAS, the Client is a multifaceted holding corporation with a diversified portfolio of physical and digital assets, requiring sophisticated oversight, strategic deployment, and continuous risk assessment across multiple international jurisdictions;

WHEREAS, the Service Provider is a premier firm specializing in global asset management, infrastructure maintenance, and high-level operational consulting, possessing the requisite expertise, personnel, and proprietary technological frameworks necessary to perform such complex services;

WHEREAS, the Client has previously conducted a comprehensive due diligence process and competitive bidding phase, during which the Service Provider demonstrated a superior ability to meet the Client's specific operational requirements and long-term capital preservation goals;

WHEREAS, the Service Provider represents and warrants that it holds all necessary governmental licenses, professional certifications, and regulatory authorizations required to provide the services described herein in compliance with all applicable local, state, and international laws;

WHEREAS, the Parties have engaged in extensive preliminary negotiations and have reached a mutual understanding regarding the scope, duration, and performance standards of their proposed professional relationship;

WHEREAS, it is the express intention of the Parties to memorialize their verbal understandings and preliminary agreements into a definitive, binding written instrument that shall govern their conduct and obligations for the duration of the engagement;

NOW, THEREFORE, in consideration of the mutual covenants, promises, and agreements set forth herein, and for other good and valuable consideration, the receipt and legal sufficiency of which are hereby acknowledged, the Parties agree as follows:

Part 3: Definitions

For the purposes of this Agreement, the following terms shall have the meanings ascribed to them below:

- **Affiliate.** Any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where "control" means the ownership of more than fifty percent (50%) of the voting stock or other equity interests.
- **Agreement.** This Service and Asset Management Agreement, including all recitals, schedules, exhibits, and any future written amendments executed by both Parties.
- **Applicable Law.** All provincial, state, federal, and international statutes, regulations, ordinances, and judicial precedents applicable to the performance of the Services in the relevant [Territory](#).
- **Asset Management.** The systematic process of developing, operating, maintaining, upgrading, and disposing of assets in the most cost-effective manner to [ensure the realization of value](#).
- **Business Day.** Any day, other than a Saturday, Sunday, or legal holiday, on which commercial banks are open for general business in New York, USA, or Toronto, Canada.
- **Confidential Information.** Any non-public, proprietary data, trade secrets, financial records, or strategic plans disclosed by one Party to the other, regardless of whether it is marked as "Confidential" at the time of disclosure.
- **Deliverables.** All reports, software, data sets, physical infrastructure improvements, or other tangible and intangible results produced by the Service Provider as part of the Services.
- **Effective Date.** The date first written in the Preamble, marking the [commencement of the legal obligations](#) between the Parties.
- **Force Majeure Event.** Any extraordinary circumstance beyond a Party's reasonable control, including but not limited to acts of God, war, [global pandemics, or governmental regulations](#) superimposed after the fact.
- **Intellectual Property Rights.** All patents, trademarks, service marks, copyrights, trade secrets, and other proprietary rights, whether registered or unregistered, arising under any jurisdiction.
- **Material Breach.** A significant failure to perform a fundamental obligation under this Agreement that justifies the termination of the contract.
- **Services.** The comprehensive asset management and operational consulting duties to be performed by the Service Provider as detailed in the Scope of Work.
- **Term.** The entire duration of this Agreement, including the initial period and any subsequent [contract extensions](#).

Part 4: Scope of Work and Performance Standards

4.1 Detailed Description of Services. The Service Provider shall perform the following services (collectively, the "Services") in a diligent, professional, and workmanlike manner, consistent with the highest industry standards for asset management:

- **Asset Auditing and Cataloging:** Conducting an exhaustive physical and digital inventory of all Client assets within the first thirty (30) days of the Term.
- **Operational Optimization:** Implementing proprietary algorithmic frameworks to increase the efficiency of asset utilization by no less than fifteen percent (15%) annually.
- **Preventative Maintenance:** Scheduling and executing recurring diagnostic checks on all hardware and infrastructure as specified in SLA guidelines.
- **Strategic Reporting:** Providing the Client with comprehensive bi-weekly performance analytics and fiscal impact statements.

4.2 Performance Standards and Benchmarks. The Service Provider agrees that all Services shall be executed by personnel possessing the specific technical competencies and professional certifications relevant to the tasks assigned. Performance shall be measured against the Key Performance Indicators (KPIs) established in the Service Level Agreement (SLA) attached hereto as Exhibit A.

4.3 Modifications to Scope. The Client may, from time to time, request changes to the Scope of Work. No such changes shall be binding unless documented in a written "Change Order" signed by authorized representatives of both Parties. The Service Provider shall provide a written estimate of the impact on contract pricing and timelines within five (5) Business Days of any such request.

4.4 Cooperation and Access. The Client shall provide the Service Provider with reasonable and timely access to its facilities, data systems, and personnel as necessary to facilitate the performance of the Services. Any delay caused by the Client's failure to provide such access shall result in a day-for-day extension of the Service Provider's delivery deadlines.

4.5 Quality Assurance. The Service Provider shall maintain a comprehensive Quality Management System (QMS) and shall permit the Client to conduct semi-annual audits of the Service Provider's records and workflows to ensure compliance with the terms of this Agreement.

Part 5: Fees, Invoicing, and Payment Terms

5.1 Compensation Structure. In full consideration for the Services rendered by the Service Provider under the terms of this Agreement, the Client shall pay a multi-tiered fee comprising a base retainer and performance-based incentives. The **Base Service Fee** shall be a recurring monthly sum of **TWENTY-FIVE THOUSAND DOLLARS (\$25,000.00 USD)**, payable in advance on the first Business Day of each calendar month.

5.2 Performance Incentives. In addition to the Base Service Fee, the Service Provider shall be eligible for a **Performance Bonus** equal to **TEN PERCENT (10%)** of any documented cost savings achieved for the Client's operations, provided such savings are verified by a third-party independent auditor.

5.3 Invoicing Procedures. The Service Provider shall submit a detailed, itemized electronic invoice to the Client's Accounts Payable department on or before the 25th day of each preceding month. Each invoice must include a unique invoice number, a breakdown of specific tasks performed, and a summary of any reimbursable expenses incurred in accordance with Section 5.4.

5.4 Reimbursable Expenses. The Client shall reimburse the Service Provider for all reasonable, pre-approved, out-of-pocket expenses directly related to the performance of the

Services, including but not limited to travel, lodging, and specialized equipment rentals. All such expenses exceeding **FIVE HUNDRED DOLLARS (\$500.00 USD)** must receive prior written authorization from the Client's Project Manager.

5.5 Payment Terms and Late Fees. All payments shall be made via **Electronic Funds Transfer (EFT)** or **Wire Transfer** to the bank account designated by the Service Provider. Payments are strictly due within **THIRTY (30) DAYS** of the invoice date (the "Net-30" period). Any undisputed amount not paid within this timeframe shall accrue interest at a rate of **ONE AND ONE-HALF PERCENT (1.5%) PER MONTH**, or the maximum rate permitted by applicable usury laws, whichever is lower.

5.6 Tax Obligations. Each Party shall be responsible for its own respective tax liabilities. The Client shall pay any applicable sales, use, or value-added taxes (VAT) imposed on the Services, excluding taxes based solely on the Service Provider's net income. If the Client is required by law to withhold taxes from payments, the Client shall provide the Service Provider with official receipts from the relevant taxing authority.

5.7 Disputed Invoices. In the event the Client disputes any portion of an invoice in good faith, the Client shall pay the undisputed portion and provide a detailed written explanation of the dispute within **TEN (10) BUSINESS DAYS**. The Parties shall then attempt to resolve the discrepancy through the dispute resolution process outlined in Section 8.

Part 6: Term and Termination

6.1 Initial Term. This Agreement shall commence on the Effective Date and shall continue in full force and effect for an initial period of **THIRTY-SIX (36) MONTHS** (the "Initial Term"), unless terminated earlier in accordance with the provisions set forth in this Section 6.

6.2 Automatic Renewal. Upon the expiration of the Initial Term, this Agreement shall automatically renew for successive twelve (12) month periods (each a "Renewal Term"), unless either Party provides written notice of its intent not to renew at least **NINETY (90) DAYS** prior to the end of the then-current term.

6.3 Termination for Convenience. The Client may terminate this Agreement at any time, without cause, by providing the Service Provider with no less than **ONE HUNDRED TWENTY (120) DAYS** prior written notice. In the event of such termination, the Client shall pay a Termination Fee equal to two (2) months of the Base Service Fee to compensate for resource reallocation costs.

6.4 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party:

- Commits a Material Breach of any representation or warranty and fails to cure such breach within **THIRTY (30) DAYS** of receiving a formal default notice;
- Becomes the subject of a petition in bankruptcy or any other proceeding relating to insolvency, receivership, or assignment for the benefit of creditors;
- Fails to maintain the required insurance coverages specified in Section 7.

6.5 Effect of Termination. Upon the effective date of termination or expiration of this Agreement:

- The Service Provider shall immediately cease all Services and deliver to the Client all Deliverables, whether complete or in progress;

- Each Party shall return or destroy all Confidential Information of the other Party in its possession, providing a written certification of such destruction;
- The Client shall remain liable for all Fees and approved expenses incurred up to the actual date of termination.

6.6 Transition Services. For a period of **SIXTY (60) DAYS** following termination, the Service Provider agrees to provide "Transition Assistance" to ensure the orderly transfer of asset management duties to the Client or a successor provider. These services shall be billed at the Service Provider's then-current hourly consulting rates.

Part 7: Indemnification, Liability, and Insurance

7.1 Mutual Indemnification. Each Party (the "Indemnifying Party") shall defend, indemnify, and hold harmless the other Party and its officers, directors, and employees (the "Indemnified Party") from and against any and all third-party claims, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or resulting from:

- Any negligent act or willful misconduct by the Indemnifying Party;
- Any Material Breach of the representations and warranties set forth in this Agreement;
- Any claim that the Deliverables or Services infringe upon the Intellectual Property Rights of a third party.

7.2 Limitation of Liability. To the maximum extent permitted by Applicable Law, in no event shall either Party be liable for any indirect, incidental, special, or consequential damages, including loss of profits or revenue, even if advised of the possibility of such damages. The total aggregate liability of the Service Provider for all claims arising under this Agreement shall not exceed the total amount of Fees paid by the Client during the twelve (12) months immediately preceding the event giving rise to the claim.

7.3 Insurance Requirements. The Service Provider shall, at its own expense, maintain in full force and effect during the Term the following insurance coverages with carriers rated A- or better by A.M. Best:

- **Commercial General Liability (CGL):** No less than **TWO MILLION DOLLARS (\$2,000,000.00)** per occurrence.
- **Professional Liability (Errors & Omissions):** No less than **FIVE MILLION DOLLARS (\$5,000,000.00)** in the aggregate to cover technical failures or professional negligence.
- **Cyber Liability:** No less than **ONE MILLION DOLLARS (\$1,000,000.00)** to cover data breaches or unauthorized access.
- **Workers' Compensation:** In accordance with the statutory limits of the jurisdiction of performance.

7.4 Proof of Coverage. The Service Provider shall provide the Client with Certificates of Insurance (COI) evidencing the required coverages within ten (10) days of the Effective Date and upon each annual renewal.

Part 8: Miscellaneous and General Provisions

8.1 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the **State of New York**, without regard to its conflict of laws principles. The Parties hereby irrevocably consent to the exclusive jurisdiction of the state and federal courts located in **New York County** for the resolution of any contractual disputes.

8.2 Dispute Resolution. Before initiating any formal legal action, the Parties agree to attempt to resolve any disagreement through good-faith mediation for a period of no less than thirty (30) days. If mediation fails, the dispute shall be settled by binding arbitration administered by the **American Arbitration Association (AAA)**.

8.3 Notices. All formal notices, demands, or other communications required under this Agreement shall be in writing and deemed sufficiently given when delivered by certified mail (return receipt requested) or by a nationally recognized overnight courier (e.g., FedEx, UPS) to the addresses specified in the Preamble.

8.4 Force Majeure. Neither Party shall be held liable for any failure or delay in performance due to circumstances beyond their reasonable control, including, but not limited to, acts of God, global pandemics, war, terrorism, or systemic failure of the public internet.

8.5 Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to make it enforceable.

8.6 Entire Agreement. This instrument, including all attached Exhibits, constitutes the **entire agreement** between the Parties and supersedes all prior written or oral agreements, memorandums of understanding, or representations. No amendment shall be valid unless executed in writing by authorized signatories of both Parties.

8.7 Survival. Provisions regarding Confidentiality, Indemnification, Limitation of Liability, and [Payment Obligations](#) shall survive the termination or expiration of this Agreement.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

FOR THE SERVICE PROVIDER:
APEX SOLUTIONS INTERNATIONAL, LLC

By: [Name], [Title]
Date: _____

FOR THE CLIENT:
NOVA METRICS HOLDINGS, CORP.

By: [Name], [Title]
Date: _____